

The Madhav University, Pindwara (Sirohi) Act, 2014

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State of Rajasthan - Act

The Madhav University, Pindwara (Sirohi) Act, 2014

RAJASTHAN

India

The Madhav University, Pindwara (Sirohi) Act, 2014

Act 7 of 2014

Published on 2 November 2006

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The Madhav University, Pindwara (Sirohi) Act, 2014

(Act

No. 7 of 2014

)

Statement of Objects and Reasons (Act

No. 7 of 2014

). - With a view to keep pace with the rapid development in all spheres of knowledge in the world and the country, it is essential to create world level modern research and study facilities in the State to provide state of the art educational facilities to the youth at their door steps so that they can make out of them human resources compatible to liberalized economic and social order of the world.

Rapid advancement in knowledge and changing requirements of human resources make it essential that a resourceful

and quick and responsive system of educational research and development be created which can work with entrepreneurial zeal under an essential regulatory set up and such a system can be created by allowing the private institutions engaged in higher education having sufficient resources and experience to establish universities and by incorporating such universities with such regulatory provisions as ensure efficient working of such institutions.

The Manav Bharti Charitable Trust, Lado, Post Office Sultanpur, Kumarhatti, Solan (Himachal Pradesh), a Trust registered under the Indian Trusts Act, 1882 (Central Act No. 2 of 1882) at Registration No. 1227/200G, dated 2.11.2006 in the office of the Sub-Registrar, Solan (Himachal Pradesh) is engaged in the field of education and running a private university that is Manav Bharti University, Solan (Himachal Pradesh) for last four years.

The said Manav Bharti Charitable Trust, Lado, Post Office Sultanpur, Kumarhatti, Solan (Himachal Pradesh) had set up educational infrastructures, both physical and academic, as specified in Schedule-I, at Village Bhujela and Wada, Tehsil Pindwara, District Sirohi in the State of Rajasthan and had agreed to invest the said infrastructure in a University for research and studies in the disciplines specified in Schedule-II and had also deposited an amount of rupees one 'crore to be utilized in establishment of an endowment fund in accordance with the provisions of this Act.

The sufficiency of the above infrastructure had been got enquired into by a committee, appointed in this behalf by the State Government consisting of the Vice-chancellor, Mohan Lal Sukhadia University, Udaipur, Director, College Education Rajasthan, Jaipur, Dean Faculty of Management, Mohan Lai Sukhadia University, Udaipur, Dean, Faculty of Science, Mohan Lai Sukhadia University, Udaipur, Dean, Faculty of Law, Mohan Lai Sukhadia University, Udaipur, Principal, Ravindra Nath Tagore Medical College, Udaipur and Director, College of Technology and Agriculture Engineering, Maharana Pratap University of Agriculture and Technology, Udaipur.

The State Government was of the view that if the aforesaid infrastructure is utilized in incorporation as a University and the said Manav Bharti Charitable Trust, Lado, Post Office Sultanpur, Kumarhatti, Solan (Himachal Pradesh) is allowed to run the University, it would contribute in the academic development of the people of the State.

Since the Rajasthan Legislative Assembly was not in session and circumstances existed which rendered it necessary for the Governor of Rajasthan to take immediate action, she, therefore, promulgated the Madhav University, Pindwara (Sirohi) Ordinance, 2013 (Ordinance No. 29 of 2013), on 25th September, 2013, which was published in Rajasthan Gazette, Part IV (B), Extraordinary, dated 25th September, 2013.

This Bill seeks to replace the aforesaid Ordinance.

Hence the Bill.

No. F. 2 (8) Vidhi/2/2014. - In pursuance of Clause (3) of Article 348 of the Constitution of India, the Governor is pleased to authorise the publication in the Rajasthan Gazette of the following translation in the English language of Madhav Vishwavidyalaya, Pindwara (Sirohi) Adhiniyam, 2014 (2014 Ka Adhiniyam Sankhyank 7):-

[Received the assent of the Governor on the 3rd day of March, 2014]

An Act to provide for establishment and incorporation of the Madhav University, Pindwara (Sirohi) in the State of Rajasthan and matters connected therewith and incidental thereto.

Whereas, with a view to keep pace with the rapid development in all spheres of knowledge in the world and the country, it is essential to create world level modern research and study facilities in the State to provide state of the art educational facilities to the youth at their door steps so that they can make out of them human resources compatible to liberalized economic and social order of the world;

And whereas, rapid advancement in knowledge and changing requirements of human resources make it essential that a resourceful and quick and responsive system of educational research and development be created which can work with entrepreneurial zeal under an essential regulatory set up and such a system can be created by allowing the private institutions engaged in higher education having sufficient resources and experience to establish universities and by incorporating such universities with such regulatory provisions as ensure efficient working of such institutions;

And whereas, the Manav Bharti Charitable Trust, Lado, Post Office Sultanpur, Kumarhatti, Solan (Himachal Pradesh), a Trust registered under the Indian Trusts Act, 1882 (Central Act No. 2 of 1882) at Registration No. 1227/2006, dated 2.11.2006 in the office of the Sub-Registrar, Solan (Himachal Pradesh) is engaged in the field of education and running a private university that is Manav Bharti University, Solan (Himachal Pradesh) for last four years;

And whereas, the said Manav Bharti Charitable Trust, Lado, Post Office Sultanpur, Kumarhatti, Solan (Himachal Pradesh) has set up educational infrastructures, both physical and academic, as specified in Schedule-I, at Village Bhujela and Wada, Tehsil Pindwara, District Sirohi in the State of Rajasthan and has agreed to invest the said infrastructure in a University for research and studies in the disciplines specified in Schedule-II and has also deposited

an amount of rupees one crore to be utilized in establishment of an endowment fund in accordance with the provisions of this Act;

And whereas, the sufficiency of the above infrastructure has been got enquired into by a committee, appointed in this behalf by the State Government consisting of the Vice-chancellor, Mohan Lal Sukhadia University, Udaipur, Director, College Education Rajasthan, Jaipur, Dean Faculty of Management, Mohan Lal Sukhadia University, Udaipur, Dean, Faculty of Science, Mohan Lal Sukhadia University, Udaipur, Dean, Faculty of Law, Mohan Lal Sukhadia University, Udaipur, Principal, Ravindra Nath Tagore Medical College, Udaipur and Director, College of Technology and Agriculture Engineering, Maharana Pratap University of Agriculture and Technology, Udaipur;

And whereas, if the aforesaid infrastructure is utilized in incorporation as a University and the said Manav Bharti Charitable Trust, Lado, Post Office Sultanpur, Kumarhatti, Solan (Himachal Pradesh) is allowed to run the University, it would contribute in the academic development of the people of the State;

Now, therefore, be it enacted by the Rajasthan State Legislature in the Sixty-fifth Year of the Republic of India, as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Madhav University, Pindwara (Sirohi) Act, 2014.

(2)

It extends to the whole of the State of Rajasthan.

(3)

It shall be deemed to have come into force on and from 25th September, 2013.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"AICTE" means All India Council of Technical Education established under All India Council of Technical Education Act, 1987 (Central Act No. 52 of 1987);

(b)

"CSIR" means the Council of Scientific and Industrial Research, New Delhi- a funding agency of the Central Government;

(c)

"DEC" means the Distance Education Council established under section 28 of Indira Gandhi National Open University Act, 1985 (Central Act No. 50 of 1985);

(d)

"distance education" means education imparted by combination of any two or more means of communication, viz. broadcasting, telecasting, correspondence courses, seminars, contact programmes and any other such methodology;

(e)

"DST" means the Department of Science and Technology of the Central Government;

(f)

"employee" means a person appointed by the University to work in the University and includes teachers, officers and other employees of the University;

(g)

"fee" means collection made by the University from the students by whatever name it may be called, which is not refundable;

(h)

"Government" means the State Government of Rajasthan;

(i)

"higher education" means study of a curriculum or course for the pursuit of knowledge beyond 10+2 level;

(j)

"hostel" means a place of residence for the students of the University, or its colleges, institutions or centres, maintained or recognized to be as such by the University;

(k)

"ICAR" means the Indian Council of Agriculture Research, a society registered under the Societies Registration Act, 1860 (Central Act No. 21 of 1860);

(l)

"MCI" means Medical Council of India constituted under section 3 of the Indian Medical Council Act, 1956 (Central Act No. 102 of 1956);

(m)

"NAAC" means the National Assessment and Accreditation Council, Bangalore, an autonomous institution of the UGC;

(n)

"NCTE" means the National Council of Teacher Education constituted under section 3 of the National Council of Teacher Education Act, 1993 (Central Act No. 73 of 1993);

(o)

"off campus centre" means a centre of the University established by it outside the main campus operated and maintained as its constituent unit, having the University's complement of facilities, faculty and staff;

(p)

"PCI" means Pharmacy Council of India constituted under section 3 of the Pharmacy Act, 1948 (Central Act No. 8 of 1948);

(q)

"prescribed" means prescribed by Statutes made under this Act;

(r)

"regulating body" means a body established or constituted by or under any law for the time being in force laying down norms and conditions for ensuring academic standards of higher education, such as UGC, AICTE, NCTE, MCI, PCI, NAAC, ICAR, DEC, CSIR etc. and includes the State Government;

(s)

"rules" means the rules made under this Act;

(t)

"Schedule" means the Schedule to this Act;

(u)

"Sponsoring Body" means the Manav Bharti Charitable Trust, Lado, Post Office Sultanpur, Kumarhatti, Solan (Himachal Pradesh), a Trust registered under the Indian Trusts Act, 1882 (Central Act No. 2 of 1882) at Registration No. 1227/2006, dated 2.11.2006 in the office of the Sub-Registrar, Solan (Himachal Pradesh);

(v)

"Statutes", "Ordinances" and "Regulations" mean respectively, the Statutes, Ordinances and Regulations of the University made under this Act;

(w)

"student of the University" means a person enrolled in the University for taking a course of study for a degree, diploma or other academic distinction duly instituted by the University, including a research degree;

(x)

"study centre" means a centre established and maintained or recognized by the University for the purpose of advising, Counseling or for rendering any other assistance required by the students in the context of distance education;

(y)

"teacher" means a Professor, Associate Professor, Assistant Professor or any other person required to impart education or to guide research or to render guidance in any other form to the students for pursuing a course of study of the University;

(z)

"UGC" means the University Grants Commission, established under section 4 of the University Grants Commission Act, 1956 (Central Act No. 3 of 1956); and

(za)

"University" means the Madhav University, Pindwara (Sirohi).

3.

Incorporation.

(1)

The first Chairperson and the first President of the University and the first members of the Board of Management and the Academic Council and all persons who may hereafter become such officers or members, so long as they continue to hold such office or membership, are hereby constituted a body corporate by the name of the Madhav University, Pindwara (Sirohi).

(2)

The movable and immovable property specified in the Schedule-I shall be vested in the University and the Sponsoring Body shall, immediately after the commencement of this Act, take steps for such vesting.

(3)

The University shall have perpetual succession and a common seal and shall sue and be sued by the said name.

(4)

The University shall situate and have its headquarters at Village Bhujela and Wada, Tehsil Pindwara, District Sirohi (Rajasthan).

4.

The objects of the University.

- The objects of the University shall be to undertake research and studies in the disciplines specified in Schedule-II and such other disciplines as the University may, with the prior approval of the State Government, determine from time to time and to achieve excellence and impart and disseminate knowledge in the said disciplines.

5.

Powers and functions of the University.

- The University shall have the following powers and functions, namely:-

(a)

to provide for instruction in the disciplines specified in Schedule-II and to make provisions for research and for the advancement and dissemination of knowledge;

(b)

to grant, subject to such conditions as the University may determine, diplomas or certificates, and confer degrees or other academic distinctions on the basis of examinations, evaluation or any other method of testing on persons, and to withdraw any such diplomas, certificates, degrees or other academic distinctions for good and sufficient cause;

(c)

to organize and to undertake extra-mural studies and extension service;

(d)

to confer honorary degrees or other distinctions in the manner prescribed;

(e)

to provide instruction, including correspondence and such other courses, as it may determine;

(f)

to institute Professorships, Associate Professorships, Assistant Professorships and other teaching or academic posts required by the University and to make appointment thereto;

(g)

to create administrative, ministerial and other posts and to make appointments thereto;

(h)

to appoint persons working in any other university or organization having specific knowledge permanently or for a specified period;

(i)

to co-operate, collaborate or associate with any other university or authority or institution in such manner and for such purpose as the University may determine;

(j)

to establish study centres and maintain schools, institutions and such centres, specialized laboratories or other units for research and instructions as are in the opinion of the University, necessary for the furtherance of its object;

(k)

to institute and award fellowships, scholarships, studentships, medals and prizes;

(l)

to establish and maintain hostels for students of the University;

(m)

to make provisions for research and consultancy, and for that purpose to enter into such arrangements with other institutions or bodies as the University may deem necessary;

(n)

to determine standards for admission into the University, which may include examination, evaluation or any other method of testing;

(o)

to demand and receive payment of fees and other charges;

(p)

to supervise the residences of the students of the University and to make arrangements for the promotion of their health and general welfare;

(q)

to make special arrangements in respect of women students as the University may consider desirable;

(r)

to regulate and enforce discipline among the employees and students of the University and take such disciplinary measures in this regard as may be deemed necessary by the University;

(s)

to make arrangements for promoting the health and general welfare of the employees of the University;

(t)

to receive donations and acquire, hold, manage and dispose of any movable or immovable property;

(u)

to borrow money with the approval of the Sponsoring Body for the purposes of the University;

(v)

to mortgage or hypothecate the property of the University with the approval of the Sponsoring Body;

(w)

to establish examination centres;

(x)

to ensure that the standard of degrees, diplomas, certificates and other academic distinctions are not lower than those laid down by AICTE, NCTE, UGC, MCI, PCI and other similar bodies established by or under any law for the time being in force for the regulation of education;

(y)

to set up off campus centre within the State, subject to the provisions of any other law for the time being in force; and

(z)

to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the University.

6.

University to be self-financed.

- The University shall be self-financed and shall not be entitled to receive any grant or other financial assistance from the State Government.

7.

No power of affiliation.

- The University shall have no power to affiliate or otherwise admit to its privileges any other institution.

8.

Endowment Fund.

(1)

There shall be established an Endowment Fund as soon as may be after coming into force of this Act with an amount of rupees one crore which has been deposited by the Sponsoring Body with the State Government.

(2)

The Endowment Fund shall be used as security deposit to ensure that the University complies with the provisions of this Act and functions as per provisions of this Act, Statutes and Ordinances. The State Government shall have the powers

to forfeit in the prescribed manner, a part or whole of the Endowment Fund in case the University or the Sponsoring Body contravenes any of the provisions of this Act or Statutes, Ordinances, Regulations or rules made thereunder.

(3)

Income from the Endowment Fund may be utilized for development of infrastructure of the University but shall not be utilized to meet out the recurring expenditure of the University.

(4)

The amount of the Endowment Fund shall be invested and kept invested until the dissolution of the University in long term securities issued or guaranteed by the State Government or deposited and kept deposited until the dissolution of the University in the interest bearing Personal Deposit Account of the Sponsoring Body in the Government Treasury.

(5)

In case of investment in long term security, the certificates of the securities shall be kept in the safe custody of the State Government and in case of deposit in the interest bearing Personal Deposit Account in Government Treasury, the deposit shall be made with the condition that the amount shall not be withdrawn without the permission of the State Government.

9.

General Fund.

- The University shall establish a fund, which shall be called the General Fund to which following shall be credited, namely:-

(a)

fees and other charges received by the University;

(b)

any contributions made by the Sponsoring Body;

(c)

any income received from consultancy and other work undertaken by the University in pursuance of its objectives;

(d)

trusts, bequests, donations, endowments and any other grants; and

(e)

all other sums received by the University.

10.

Application of General Fund.

- The General Fund shall be utilized for meeting all expenses, recurring or nonrecurring in connection with the affairs of the University:

Provided that no expenditure shall be incurred by the University in excess of the limits for total recurring expenditure and total non-recurring expenditure for the year, as may be fixed by the Board of Management, without the prior approval of the Board of Management.

11.

Officers of the University.

- The following shall be the officers of the University, namely:-

(i)

the Chairperson;

(ii)

the President;

(iii)

the Pro-President;

(iv)

the Provost;

(v)

the Proctor;

(vi)

the Deans of Faculties;

(vii)

the Registrar;

(viii)

the Chief Finance and Accounts Officer; and

(ix)

such other officers as may be declared by the Statutes to be the officers of the University.

12.

The Chairperson.

(1)

The Chairperson shall be appointed by the Sponsoring Body with the consent of the State Government for a period of five years from the date on which he enters upon his office:

Provided that a Chairperson shall notwithstanding the expiration of his term continue to hold office until his successor enters upon the office.

(2)

Any vacancy in the office of Chairperson shall be filled within six months from the date of such vacancy.

(3)

The Chairperson shall, by virtue of his office, be the head of the University.

(4)

The Chairperson shall, if present, preside at the meetings of the Board of Management and at the convocation of the University for conferring degrees, diplomas or other academic distinctions.

(5)

The Chairperson shall have the following powers, namely:-

(a)

to call for any information or record in connection with the affairs of the University;

(b)

to appoint the President;

(c)

to remove the President in accordance with the provisions of sub-section (8) of section 13; and

(d)

such other powers as may be prescribed by the Statutes.

13.

The President.

(1)

The President shall be appointed by the Chairperson from a panel of three persons recommended by the Board of Management and shall, subject to the provisions contained in sub-section (8), hold office for a term of three years:

Provided that, after expiry of the term of three years, a person shall be eligible for re-appointment for another term of three years:

Provided further that a President shall, notwithstanding the expiration of his term continue to hold office until his successor enters upon the office.

(2)

Any vacancy in the office of President shall be filled within six months from the date of such vacancy.

(3)

The President shall be the principal executive and academic officer of the University and shall exercise general superintendence and control over the affairs of the University and shall execute the decisions of the authorities of the University.

(4)

The President shall preside at the convocation of the University in the absence of the Chairperson.

(5)

If, in the opinion of the President it is necessary to take immediate action on any matter for which powers are conferred on any other authority by or under this Act, he may take such action as he deems necessary and shall at the earliest opportunity thereafter report his action to such officer or authority as would have in the ordinary course dealt with the matter:

Provided that if in the opinion of the concerned officer or authority such action should not have been taken by the President then such case shall be referred to the Chairperson, whose decision thereon shall be final:

Provided further that where any such action taken by the President affects any person in the service of the University, such person shall be entitled to prefer, within three months from the date on which such action is communicated to him, an appeal to the Board of Management and the Board of Management may confirm or modify or reverse the action taken by the President.

(6)

If, in the opinion of the President, any decision of any authority of the University is outside the powers conferred by this Act or Statutes, Ordinances, Regulations or rules made thereunder or is likely to be prejudicial to the interests of the University, he shall direct the concerned authority to revise its decision within fifteen days from the date of its decision and in case the authority refuses or fails to revise such decision, then such matter shall be referred to the Chairperson and his decision thereon shall be final.

(7)

The President shall exercise such other powers and perform such other duties as may be prescribed by the Statutes or the Ordinances.

(8)

If the Chairperson is satisfied, on an enquiry made or caused to be made on a representation made to him or otherwise, that the continuance of President in his office is prejudicial to the interests of the University or the situation so warrants, he may, by an order in writing and stating the reasons therein for doing so, ask the President to relinquish his office from such date as may be specified in the order:

Provided that before taking an action under this subsection, the President shall be given an opportunity of being heard.

14.

The Pro-President.

(1)

The Pro-President shall be appointed by the Chairperson in consultation with the President.

(2)

The Pro-President shall hold office for a period of three years and shall be eligible for re-appointment for a second term.

(3)

The conditions of service of the Pro-President shall be such as may be prescribed by the Statutes.

(4)

If the Chairperson is satisfied, on an enquiry made or caused to be made on a representation made to him or otherwise, that the continuance of the Pro-President in his office is prejudicial to the interests of the University or the situation so warrants, he may, by an order in writing and stating the reasons therein for doing so, ask the Pro-President to relinquish his office from such date as may be specified in the order:

Provided that before taking an action under this subsection, the Pro-President shall be given an opportunity of being heard.

(5)

The Pro-President shall assist the President in such matters as are assigned to him by the President from time to time and shall exercise such powers and perform such functions as may be delegated to him by the President.

15.

The Provost.

(1)

The Provost shall be appointed by the President for such period and in such manner as may be prescribed by the Statutes.

(2)

The Provost shall ensure discipline in the University and shall keep the various unions of the teachers and employees advised of the various policies and practices in the University.

(3)

The Provost shall exercise such other powers and perform such other duties as may be prescribed by the Statutes.

16.

The Proctor.

(1)

The Proctor shall be appointed by the President for such period and in such manner as may be prescribed by the Statutes.

(2)

The Proctor shall be responsible for the maintenance of discipline among the students and keep the various students' unions advised of the various policies and practices in the University.

(3)

The Proctor shall exercise such other powers and perform such other duties as may be prescribed by the Statutes.

17.

The Dean of Faculty.

(1)

There shall be a Dean of each Faculty who shall be appointed by the President for a period of three years in such manner as may be prescribed by the Statutes.

(2)

The Dean shall convene meetings of the Faculty, as and when required, in consultation with the President and shall preside over the same. He shall formulate the policies and development programme of the Faculty and present the same to the appropriate authorities for their consideration.

(3)

The Dean of Faculty shall exercise such other powers and perform such other duties as may be prescribed by the Statutes.

18.

The Registrar.

(1)

The Registrar shall be appointed by the Chairperson in such manner as may be prescribed by the Statutes.

(2)

All contracts shall be signed and all documents and records shall be authenticated by the Registrar on behalf of the University.

(3)

The Registrar shall be the Member-Secretary of the Board of Management and Academic Council but he shall not have a right to vote.

(4)

The Registrar shall exercise such other powers and perform such other duties as may be prescribed by the Statutes.

19.

The Chief Finance and Accounts Officer.

(1)

The Chief Finance and Accounts Officer shall be appointed by the President in such manner as may be prescribed by the Statutes.

(2)

The Chief Finance and Accounts Officer shall exercise such powers and perform such duties as may be prescribed by the Statutes.

20.

Other officers.

(1)

The University may appoint such other officers as may be necessary for its functioning.

(2)

The manner of appointment and powers and functions of such officers shall be such as may be prescribed by the Statutes.

21.

Authorities of the University.

- The following shall be the authorities of the University, namely:-

(i)

the Board of Management;

- (ii) the Academic Council;
- (iii) the Faculties; and
- (iv) such other authorities as may be declared by the Statutes to be the authorities of the University.

22.

The Board of Management.

- (1) The Board of Management of the University shall consist of the following, namely:-

- (a) the Chairperson;
- (b) the President;
- (c) five persons nominated by the Sponsoring Body out of whom two shall be eminent educationists or specialists in disciplines specified in Schedule-II;
- (d) one expert of management or information technology from outside the University, nominated by the Chairperson;
- (e) one expert of finance, nominated by the Chairperson;
- (f) Commissioner, College Education or his nominee not below the rank of Deputy Secretary; and
- (g) two teachers, nominated by the President.

- (2) The Board of Management shall be the principal executive body of the University. All the movable and immovable property of the University shall vest in the Board of Management. It shall have the following powers, namely:-

- (a) to provide general superintendence and directions and to control the functioning of the University by using all such powers as are provided by this Act or the Statutes, Ordinances, Regulations or rules made thereunder;
- (b) to review the decisions of other authorities of the University in case they are not in conformity with the provisions of this Act or the Statutes, Ordinances, Regulations or rules made thereunder;
- (c) to approve the budget and annual report of the University;
- (d) to lay down the policies to be followed by the University;
- (e) to recommend to the Sponsoring Body about the voluntary liquidation of the University, if a situation arises when smooth functioning of the University does not remain possible, in spite of all efforts; and
- (f) such other powers as may be prescribed by the Statutes.

- (3) The Board of Management shall meet at least three times in a calendar year.

- (4) The quorum for meetings of the Board of Management shall be five.

23.

The Academic Council.

- (1)

The Academic Council shall consist of the President and such other members as may be prescribed by the Statutes.

(2)

The President shall be the Chairperson of the Academic Council.

(3)

The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act and the rules, Regulations, Statutes or Ordinances, made thereunder, co-ordinate and exercise general supervision over the academic policies of the University.

(4)

The quorum for meetings of the Academic Council shall be such as may be prescribed by the Statutes.

24.

Other authorities.

- The composition, constitution, powers and functions of other authorities of the University shall be such as may be prescribed by the Statutes.

25.

Disqualification for membership of an authority.

- A person shall be disqualified for being a member of any of the authorities of the University, if he-

(a)

is of unsound mind and stands so declared by a competent court;

(b)

is an undischarged insolvent;

(c)

has been convicted of any offence involving moral turpitude;

(d)

is conducting or engaging himself in private coaching classes; or

(e)

has been punished for indulging in or promoting unfair practice in the conduct of any examination, in any form, anywhere.

26.

Vacancies not to invalidate the proceedings of any authority of the University.

- No act or proceeding of any authority of the University shall be invalid merely by reason of any vacancy or defect in the constitution thereof.

27.

Filling up of emergent vacancies.

- Any vacancies occurred in the membership of authorities of the University due to death, resignation or removal of a member or due to change of capacity in which he was appointed or nominated, shall be filled up as early as possible by the person or the body who had appointed or nominated such a member:

Provided that the person appointed or nominated as a member of an authority of the University on an emergent vacancy, shall remain member of such authority for only the remaining period of the member, in whose place he is appointed or nominated.

28.

Committee.

- The authorities or officers of the University may constitute such committees with such terms of reference as may be necessary for specific tasks to be performed by such committees. The constitution of such committees and their duties shall be such as may be prescribed by the Statutes.

29.

The Statutes.

(1)

Subject to the provisions of this Act, the Statutes of the University may provide for all or any of the following matters, namely:-

(a)

the constitution, powers and functions of the authorities of the University as may be constituted from time to time;

- (b)
the terms and conditions of appointment of the President and his powers and functions;
 - (c)
the manner and terms and conditions of appointment of the Registrar and Chief Finance and Accounts Officer and their powers and functions;
 - (d)
the manner in which and the period for which the Provost and the Proctor shall be appointed and their powers and functions;
 - (e)
the manner in which the Dean of Faculty shall be appointed and his powers and functions;
 - (f)
the manner and terms and conditions of appointment of other officers and teachers and their powers and functions;
 - (g)
the terms and conditions of service of employees of the University and their functions;
 - (h)
the procedure for arbitration in case of disputes between officers, teachers, employees and students;
 - (i)
the conferment of honorary degrees;
 - (j)
the provisions regarding exemption of students from payment of tuition fee and for awarding to them scholarships and fellowships;
 - (k)
provisions regarding the policy of admissions, including regulation of reservation of seats;
 - (l)
provisions regarding fees to be charged from students;
 - (m)
provisions regarding number of seats in different courses;
 - (n)
creation of new authorities of the University;
 - (o)
accounting policy and financial procedure;
 - (p)
creation of new departments and abolition or restructuring of existing departments;
 - (q)
institution of medals and prizes;
 - (r)
creation of posts and procedure for abolition of posts;
 - (s)
revision of fees;
 - (t)
alteration of the number of seats in different syllabi; and
 - (u)
all other matters which under the provisions of this Act are required to be, or may be, prescribed by the Statutes.
- (2)
The Statutes of the University shall be made by the Board of Management and shall be submitted to the State Government for its approval.
- (3)
The State Government shall consider the Statutes submitted by the University and shall give its approval thereon within two months from the date of its receipt with such modifications, if any, as it may deem necessary.
- (4)
The University shall communicate its agreement to the Statutes as approved by the State Government, and if it desires

not to give effect to any or all of the modifications made by the State Government under sub-section (3), it may give reasons therefor and after considering such reason, the State Government may or may not accept the suggestions made by the University.

(5)

The State Government shall publish the Statutes, as finally approved by it, in the Official Gazette, and thereafter, the Statutes shall come into force from the date of such publication.

30.

The Ordinances.

(1)

Subject to the provisions of this Act or Statutes made thereunder, the Ordinances may provide for all or any of the following matters, namely:-

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for the degrees, diplomas and certificates of the University;

(c)

the award of the degrees, diplomas, certificates and other academic distinctions, the minimum qualifications for the same and the measures to be taken relating to the granting and obtaining of the same;

(d)

the conditions for award of fellowships, scholarships, stipends, medals and prizes;

(e)

the conduct of examinations, including the terms of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(f)

fees to be charged for the courses, examinations, degrees and diplomas of the University;

(g)

the conditions of residence of the students of the University;

(h)

provision regarding disciplinary action against the students;

(i)

the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(j)

the manner of co-operation and collaboration with other Universities and institutions of higher education; and

(k)

all other matters which by this Act or Statutes made thereunder are required to be provided by the Ordinances.

(2)

The Ordinances of the University shall be made by the Academic Council which after being approved by the Board of Management, shall be submitted to the State Government for its approval.

(3)

The State Government shall consider the Ordinances submitted under sub-section (2) within two months from the date of their receipt and shall either approve them or give suggestions for modifications therein.

(4)

The Academic Council shall either modify the Ordinances incorporating the suggestion of the State Government or give reasons for not incorporating any of the suggestions made by the State Government and shall return the Ordinances along with such reasons, if any, to the State Government and on receipt of the same, the State Government shall consider the comments of the Academic Council and shall approve the Ordinances of the University with or without such modifications.

31.

Regulations.

- The authorities of the University may, subject to the prior approval of the Board of Management, make regulations,

consistent with this Act and the rules, Statutes and the Ordinances made thereunder, for the conduct of their own business and that of the committees appointed by them.

32.

Admissions.

(1)

Admission in the University shall be made strictly on the basis of merit.

(2)

Merit for admission in the University may be determined either on the basis of marks or grade obtained in the qualifying examination and achievements in co-curricular and extra-curricular activities or on the basis of marks or grade obtained in the entrance test conducted at the State level either by an association of the universities conducting similar courses or by any agency of the State:

Provided that admission in professional and technical courses shall be made only through entrance test.

(3)

Reservation in admission to the University for scheduled castes, scheduled tribes, backward classes, special backward classes, women and handicapped persons shall be provided as per the policy of the State Government.

33.

Fee structure.

(1)

The University may, from time to time, prepare its fees structure and sent it for approval of the committee constituted for the purpose.

(2)

The committee shall consider the fees structure prepared by the University and if it is satisfied that the proposed fees is

–

(a)

sufficient for –

(i)

generating resources for meeting the recurring expenditure of the University; and

(ii)

the savings required for the further development of the University; and

(b)

not unreasonably excessive, it may approve the fees structure.

(3)

The fees structure approved by the committee under sub-section (2) shall remain in force for three years and the University shall be entitled to charge fees in accordance with such fees structure.

(4)

The University shall not charge any fees, by whatever name called, other than that for which it is entitled under subsection (3).

34.

Examinations.

- At the beginning of each academic session and in any case not later than 30th of August of every calendar year, the University shall prepare and publish a schedule of examinations for each and every course conducted by it and shall strictly adhere to the schedule.

Explanation. - "Schedule of Examination" means a table giving details about the time, day and date of the commencement of each paper which is a part of a scheme of examinations and shall also include the details about the practical examinations:

Provided that if, for any reason whatsoever, the University has been unable to follow this schedule, it shall, as soon as practicable, submit a report to the State Government incorporating the reasons for making a departure from the published schedule. The Government may, thereon, issue such directions as it may deem fit for the compliance of the schedule.

35.

Declaration of results.

(1)

The University shall strive to declare the results of every examination conducted by it within thirty days from the last date of the examination for that particular course and shall in any case declare the results latest within fortyfive days from such date:

Provided that if, for any reason whatsoever, the University is unable to finally declare the results of any examination within the aforesaid period of forty-five days, it shall submit a report incorporating the reasons for such delay to the State Government. The State Government may, thereon, issue such directions as it may deem fit.

(2)

No examination or the results of an examination shall be held invalid only for the reasons that the University has not followed the time schedule as stipulated in section 34 or, as the case may be, in this section.

36.

Convocation.

- The convocation of the University shall be held in every academic year in the manner as may be prescribed by the Statutes for conferring degrees, diplomas or for any other purpose.

37.

Accreditation of the University.

- The University shall obtain accreditation from the NAAC, as per the norms of the NAAC and inform the State Government and such other regulating bodies which are connected with the courses taken up by the University about the grade provided by the NAAC to the University. The University shall get renewed such accreditation from time to time as per the norms of the NAAC.

38.

University to follow rules, regulations, norms, etc. of the regulating bodies.

- Notwithstanding anything contained in this Act, the University shall be bound to comply with all the rules, regulations, norms, etc. of the regulating bodies and provide all such facilities and assistance to such bodies as are required by them to discharge their duties and carry out their functions.

39.

Annual report.

(1)

The annual report of the University shall be prepared by the Board of Management which shall include among other matters, the steps taken by the University towards the fulfilment of its objects and copy of the same shall be submitted to the Sponsoring Body.

(2)

Copies of the annual report prepared under sub-section (1) shall also be presented to the State Government.

40.

Annual accounts and audit.

(1)

The annual accounts including balance sheet of the University shall be prepared under the directions of the Board of Management and the annual accounts shall be audited at least once in every year by the auditors appointed by the University for this purpose.

(2)

A copy of the annual accounts together with the audit report shall be submitted to the Board of Management.

(3)

A copy of the annual accounts and audit report along with the observations of the Board of Management shall be submitted to the Sponsoring Body.

(4)

Copies of annual accounts and balance sheet prepared under sub-section (1) shall also be presented to the State Government. The advice of the State Government, if any, arising out of the accounts and audit report of the University shall be placed before the Board of Management. The Board of Management shall issue such directions, as it may deem fit and compliance shall be reported to the State Government.

41.

Powers of the State Government to inspect the University.

(1)

For the purpose of ascertaining the standards of teaching, examination and research or any other matter relating to the University, the State Government may cause an inspection, to be made in such manner as may be prescribed, by such person or persons as it may deem fit.

(2)

The State Government shall communicate to the University its recommendations in regard to the result of such inspection for corrective action. The University shall adopt such corrective measures and make efforts so as to ensure the compliance of the recommendations.

(3)

If the University has failed to comply with the recommendations made under sub-section (2) within a reasonable time, the State Government may give such directions as it may deem fit for such compliance.

42.

Powers of the State Government to call for information.

(1)

The State Government may call for information from the University relating to its working, functions, achievements, standard of teaching, examination and research or any other matters as it may consider necessary to judge the efficiency of the University in such form and within such time as may be prescribed by rules.

(2)

The University shall be bound to furnish the information as required by the State Government under sub-section (1) within the prescribed time.

43.

Dissolution of the University by the Sponsoring Body.

(1)

The Sponsoring Body may dissolve the University by giving a notice to the effect in the prescribed manner to the State Government and the employees and the students of University at least one year in advance:

Provided that dissolution of the University shall have effect only after the approval of the State Government and the last batches of students of the regular courses have completed their courses and they have been awarded degrees, diplomas or awards, as the case may be.

(2)

On the dissolution of the University all the assets and liabilities of the University shall vest in the Sponsoring Body.

44.

Special powers of the State Government in certain circumstances.

(1)

If it appears to the State Government that the University has contravened any of the provisions of this Act or the rules, Statutes or Ordinances made thereunder or has violated any of the directions issued by it under this Act or has ceased to carry out any undertakings given by it to the State Government or a situation of financial mismanagement or mal-administration has arisen in the University, it shall issue notice requiring the University to show cause within forty-five days as to why an order of its liquidation should not be made.

(2)

If the State Government, on receipt of reply of the University on the notice issued under sub-section (1), is satisfied that there is a prima facie case of contravening any of the provisions of this Act or the rules, Statutes or Ordinances made thereunder or of violating directions issued by it under this Act or of ceasing to carry out the undertakings given by it or of financial mismanagement or mal-administration, it shall make an order of such enquiry as it may consider necessary.

(3)

The State Government shall, for the purposes of any enquiry under sub-section (2), appoint an inquiry officer or officers to inquire into any of the allegations and to make report thereon.

(4)

The inquiry officer or officers appointed under subsection (3) shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (Central Act No. 5 of 1908) while trying a suit in respect of the following matters, namely:-

(a)

summoning and enforcing the attendance of any person and examining him on oath;

(b)

requiring the discovery and production of any such document or any other material as may be predicable in evidence; and

(c)

requisitioning any public record from any court or office.

(5)

The inquiry officer or officers inquiring under this Act shall be deemed to be a civil court for the purposes of section 195 and Chapter 26 of the Code of Criminal Procedure, 1973 (Central Act No. 2 of 1974).

(6)

On receipt of the enquiry report from the officer or officers appointed under sub-section (3), if the State Government is satisfied that the University has contravened any of the provisions of this Act or the rules, Statutes or Ordinances made thereunder or has violated any of the directions issued by it under this Act or has ceased to carry out the undertakings given by it or a situation of financial mismanagement and mal-administration has arisen in the University which threatens the academic standard of the University, it shall make orders for liquidation of the University and appoint an administrator and thereupon the authorities and officers of the University shall be subject to the order and direction of the administrator.

(7)

The administrator appointed under sub-section (6) shall have all the powers and be subject to all the duties of the Board of Management under this Act and shall administer the affairs of the University until the last batch of the students of the regular courses have completed their courses and they have been awarded degrees, diplomas or awards, as the case may be.

(8)

After having been awarded the degrees, diplomas or awards, as the case may be, to the last batches of the students of the regular courses, the administrator shall make a report to the effect to the State Government.

(9)

On receipt of the report under sub-section (8), the State Government shall, by a notification in the Official Gazette, issue an order dissolving the University and from the date of publication of such notification the University shall stand dissolved and all the assets and liabilities of the University shall vest in the Sponsoring Body from such date.

45.

Power to make rules.

(1)

The State Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.

(2)

All rules made under this Act shall be laid, as soon as may be, after they are so made, before the House of the State Legislature, while it is in session, for a period of not less than fourteen days which may be comprised in one session or in two successive sessions and if before the expiry of the session in which they are so laid or of the session immediately following, the House of the State Legislature makes any modification in any such rules or resolves that any such rules should not be made, such rules shall thereafter have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done thereunder.

46.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the State Government may, by order published in the Official Gazette, make provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that no order under this section shall be made after the expiry of a period of two years from the date of commencement of this Act.

(2)

Every order made under this section shall, as soon as may be after it is made, shall be laid before the House of the

State Legislature.

47.

The Act to have overriding effect.

- The provisions of this Act and the rules, Statutes, Ordinances made thereunder shall have effect notwithstanding anything to the contrary contained in any other law, for the time being in force, relating to the matters in respect of which the State Legislature has exclusive power to make laws.

48.

Repeal and savings.

(1)

The Madhav University, Pindwara (Sirohi) Ordinance, 2013 (Ordinance No. 29 of 2013) is hereby repealed.

(2)

Notwithstanding such repeal, all things done, actions taken or orders made under the said Ordinance shall be deemed to have been done, taken or made under this Act.

I

Infrastructure

1. Land: 31.25 Acres of land comprising in Khasra Nos. 146/1 of Village Wada and 146/8 of Village Bhujela of Tehsil Pindwara, District Sirohi (Rajasthan).

2. Buildings:

(i)

Administrative Block:

(a)

Number and Category of Units: 10

Category of Units

No. of Units

1

2

Office of the Chairperson

1

Office of the President

1

Meeting Room

1

Office of the Registrar

1

Office of the Chief Finance and Accounts Officer

1

Admission Office

1

Office of the Controller of Examination

1

Examination Office

1

Pantry

1

Reception Room

1

Total

10

(b)

Measurement of total covered area: 1,692 Sq. Mtrs.

(ii)

Academic Block:

(a)

Number and Category of Units: 112

Category of Units

No. of Units

1

2

Class Rooms

20

Drawing Hall

1

Multipurpose Hall

1

Conference Hall

1

Workshop

1

Faculty Rooms / Cabins

10

Laboratories

17

Store Room

1

Librarian Room

1

Library

1

Reading Room

1

Visitors Lounge

1

Gents Toilets

12

Ladies Toilets

12

Training and Placement Cell

1

Rooms of Heads of Department

10

Seminar Rooms

3

Tutorial Rooms

3

Common Room for Boys

1

Common Room for Girls

1

Office

1

First Aid Room

1

Sports Room

1

Strong Room

1

Examination Hall

1

Machine Room

1

Electric Room

1

Instrument Room

1

Audio Visual Room

1

Record Room

1

Counselling Room

1

Reception

1

Office of the Dean of Student Welfare

1

Total

112

(b)

Measurement of total covered area: 12,274 Sq. Mtrs.

(iii)

Others:

(a)

Number and Category of Units: 4

Category of Units

No. of Units

Mess cum Canteen

1

Power House

1

Sewage Treatment Plant

1

Cafeteria

1

Total

4

(b)

Measurement of total covered area: 375 Sq. Mtrs.

Total Build up area : 14,341 Sq. Mtrs.

3. Faculties: (Shall be appointed as per guidelines of UGC)

4. Academic Facilities:

(i)

Libraries / Digital Libraries:

Faculty

Books

National Journals /Magazines
International Journals/Magazines
E-Journals/E-Database
Volumes
Titles
Faculty of Engineering and Technology
2,488
1,013
20
5
DELNET
Faculty of Management Studies
994
289
10
3
-
Faculty of Computer Science and Information
Technology
470
212
12
2
-
Faculty of Arts, Commerce and Science
1,417
406
15
-
-
Faculty of Law
905
605
12
2
-
Faculty of Education
1,252
365
25
-
-
Total
7,526
2,890
94
12
-
(ii)
Reading Room: 01
(iii)

Laboratories: 17

Name of Laboratory

No. of Units

1

2

Computer Laboratories

2

Analog Electronics Laboratory

1

Digital Electronics Laboratory

1

Communication Laboratory

1

Digital Signal Processing Laboratory

1

Industrial Electronics Laboratory

1

Control System Laboratory

1

Electrical Machines Laboratory

1

Physics Laboratory

1

Chemistry Laboratory

1

Electrical Laboratory

1

Drawing Laboratory

1

Language Laboratories

2

Biotechnology Laboratory

1

Networking Laboratory

1

Total

17

5. Facilities for Co-curricular activities:

Indoor Facilities:

Carrom

Chess

Table Tennis

Outdoor Facilities:

Athletics

Basketball

Volleyball

Yoga and Meditation

II

Disciplines in which University shall undertake study and research:

1. Engineering and Technology

2. Architecture and Planning

3. Computer Science and Applications
 4. Basic and Applied Sciences
 5. Management
 6. Commerce, Business and Economics
 7. Humanities and Social Sciences
 8. International Trade and Commerce
 9. Law
 10. Pharmacy
 11. Education
 12. Library Science and Informatics
 13. Journalism, Mass Communication and Media
 14. Healthcare including Medical, Dental, Pharmaceutical Sciences, Ayurved, Naturopathy, Homoeopathy, Veterinary, Physiotherapy, Biotechnology, Medical Sciences, Paramedical and Nursing
 15. Hospitality, Travel and Tourism
 16. Physical Education
 17. Arts and Crafts
 18. Home Science
 19. Agriculture
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